



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – Cpl. Caleb Terry #117, Cpl. Jacob Tow #337

Work Assignment: Troop/Division - A; Post/Unit – 3-Cartersville

INCIDENT REPORT # DPS00154343

Related Crash Reports: C000940495 ; _____ ; _____

P.I.T. Involved: Yes

S.C.R.T. Involved: Yes

Special Investigations Unit Involved: Yes

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date:

Time:

Location:

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present:

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 01/24/2024

Time: 13:57 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

Cpl. Terry was conducting speed enforcement on I-75 northbound near mile marker 305 when he checked a 2007 Honda Accord, gold in color, at 87 mph in a 70 mph zone. When

Cpl. Terry caught up to the violator, near Exit #306 (GA 140), the violator entered the outside emergency lane, passed a tractor-trailer on the right, and traveled onto the exit ramp at Exit #306. The violator turned onto GA 140 eastbound and rapidly accelerated, initiating a pursuit. Cpl. Tow joined the pursuit to assist as a secondary unit when the pursuit turned onto Richards Road.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A

If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: Cpl. Terry called in the traffic stop to Troop A Communications and, when the violator turned right onto GA 140 and accelerated, Cpl. Terry advised that he was in pursuit. He relayed a vehicle description, registration, and direction of travel. Senior Dispatcher High immediately cleared the radio for emergency traffic.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Dispatcher Cochran alerted other DPS units in the area, and he kept them informed of developments by repeating Cpl. Terry's radio traffic throughout the

pursuit. Dispatcher Coffman contacted Bartow County 911 to request assistance from local law enforcement agencies. Dispatcher Brewer contacted Cherokee County 911 to alert them of the pursuit as it was approaching their jurisdiction.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on GA 140 eastbound, near the intersection of Mitchell Road. The violator turned left on Folsom Road, traveling east, until again reaching GA 140. The pursuit made a right turn onto GA 140 and then a quick left turn onto Powell Road, traveling south. At the intersection of Towe Chapel Road, the pursuit turned left and continued southbound. It turned east on Pine Ridge Road, where it turned left onto Kirk Road. The pursuit traveled across Spring Place Road, entering Bowen Road eastbound. It turned left onto Richards Road, traveling north, until reaching GA 140, where the violator turned left and traveled westbound. The pursuit terminated on GA 140, just west of Adcock Loop. The pursuit traveled a total distance of 18.3 miles and lasted approximately 16 minutes, 2 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No If Yes, explain: Cpl. Terry and Cpl. Tow stated they experienced an adrenalin rush.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes

☐ No

If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: Sgt. Langham made two attempts to deploy stop sticks. The first attempt occurred as the pursuit traveled eastbound on GA 140 near Green Loop, and the violator was able to drive around the stop sticks. The second attempt occurred while the pursuit traveled westbound near Gum Springs Road. Sgt. Langham removed the stop sticks from the road due to the violator traveling directly behind a bystander vehicle as he passed. Cpl. Terry made one attempt to implement the Precision Immobilization Technique, which was successful in terminating the pursuit. The left front of Cpl. Terry's patrol car made contact with the right rear of the violator's vehicle, resulting in the violator's vehicle spinning clockwise off the north side of GA 140.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: Both Cpl. Terry and Cpl. Tow employed all emergency equipment throughout the pursuit. Cpl. Terry exercised due regard before traveling through stop signs, and he did not follow when the violator traveled on the wrong side of the road in blind curves. He utilized the opposite side of the road only when it was reasonably safe to do so. Cpl. Terry allowed Cpl. Tow to handle radio traffic once he became the secondary unit in the pursuit. At the conclusion of the pursuit, Cpl. Terry and Cpl. Tow drew their service weapons and ordered the occupants out of the vehicle. When the violator was unresponsive to commands, they methodically approached the violator's vehicle from the rear, and they employed a Bartow County Sheriff's Office K-9 to ensure the violator posed no threat before they began rendering aid.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daylight hours with cloudy skies, and the road surface was dry. Traffic on GA 140 would be characterized as moderate. Traffic on the numerous county roads was light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: The violator fled on a two-lane state highway at speeds well in excess of 100 mph, and he reached speeds of over twice the speed limit on various county roads. He recklessly ran numerous stop signs, drove on the wrong side of the road, passed other motorists in no passing zones and blind curves, and he narrowly missed striking other motorists on multiple occasions. At one point, he appeared to intentionally swerve at another motorist who was traveling in the opposite direction. The pursuit was approaching the City of Adairsville, where traffic volume would certainly increase and where there are multiple traffic-controlled intersections. Allowing the pursuit to continue any longer than necessary would only increase the likelihood of harm to the public.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: The violator fled on a two-lane state highway at speeds well in excess of 100 mph, and he reached speeds of over twice the speed limit on various county roads. He recklessly ran numerous stop signs, drove on the wrong side of the road, passed other motorists in no passing zones and blind curves, and he narrowly missed striking other motorists on multiple occasions. At one point, he appeared to intentionally swerve at another motorist who was traveling in the opposite direction. The pursuit was approaching the City of Adairsville, where traffic volume would certainly increase and where there are multiple traffic-controlled intersections. Allowing the pursuit to continue any longer than necessary would only increase the likelihood of harm to the public.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: The violator fled on a two-lane state highway at speeds well in excess of 100 mph, and he reached speeds of over twice the speed limit on various county roads. He recklessly ran numerous stop signs, drove on the wrong side of the road, passed other motorists in no passing zones and blind curves, and he narrowly missed striking other motorists on multiple occasions. At one point, he appeared to intentionally swerve at another motorist who was traveling in the opposite direction. The pursuit was approaching the City of Adairsville, where traffic volume would certainly increase and where there are multiple traffic-controlled intersections. The violator showed no regard for the safety of himself or others.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A

If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A

If Yes, explain: Cpl. Terry terminated the pursuit by implementing the Precision Immobilization Technique. Sgt. Langham had made two unsuccessful attempts to deploy stop sticks in order to end the pursuit. There were not enough units engaged in the pursuit to attempt a Box-In Maneuver. The violator fled on a two-lane state highway at speeds well in excess of 100 mph, and he reached speeds of over twice the speed limit on various county roads. He recklessly ran numerous stop signs, drove on the wrong side of the

road, passed other motorists in no passing zones and blind curves, and he narrowly missed striking other motorists on multiple occasions. At one point, he appeared to intentionally swerve at another motorist who was traveling in the opposite direction. The pursuit was traveling toward the City of Adairsville, where traffic volume would certainly increase and where there are numerous traffic-controlled intersections. Cpl. Terry's decision to implement the PIT was objectively reasonable in order to safeguard life and preserve public safety.

11. If there were any injuries, state who received them, the type and severity.

☐ N/A

If Yes, explain: The violator suffered serious injuries to his spine as a result of the crash that occurred following the PIT. The passenger in the violator's vehicle suffered minor cuts and bruises.

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A

If Yes, explain:

13. Address any damage to vehicles.

☐ N/A

If Yes, explain: The violator's vehicle sustained disabling damage that resulted from the crash following the PIT. The violator's vehicle struck a culvert and overturned multiple times. Cpl. Terry's patrol car sustained minor scuffs to its brush guard.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A

If Yes, explain: Cpl. Terry and Cpl. Tow have been involved in numerous vehicle pursuits over the course of their respective careers as a Georgia State Troopers.

2. Past use of techniques and high speed driving.

☒ N/A

If Yes, explain: Cpl. Terry has implemented the Precision Immobilization Technique on numerous occasions over the course of his career. Cpl. Terry and Cpl. Tow have received Department sponsored EVOC and Advanced EVOC training, as well as training in pursuit ending tactics and yearly classroom training regarding pursuits.

ISSUES ADDRESSED

1. Positives.

☐ N/A

If Yes, explain: Cpl. Terry did an excellent job of commentator driving, and he slowed and verbally cleared intersections when the violator ran stops signs. He communicated all pertinent information, and he regularly gave location updates. Both he and Cpl. Tow demonstrated good driving skills during the pursuit, and they exercised due regard throughout the pursuit. During the high-stress nature of the pursuit, neither Trooper exhibited signs of adrenaline rush or tunnel vision. Cpl. Tow was effective in his communication with Troop A Communications. At the termination point, Cpl. Terry and Cpl. Tow developed a reasonable safe and effective method to approach the violator's vehicle when he was unresponsive to verbal commands.

2. Areas for improvement.

☒ N/A

If Yes, explain:

3. Other considerations.

☐ N/A

If Yes, explain: Cpl. Terry and Cpl. Tow drew their service weapons while attempting to effect the arrest of the violator, and a Use of Force Report was completed. The violator was found to be in possession of methamphetamine, and he had an outstanding felony parole warrant. The violator was determined to be Driving Under the Influence of Drugs.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☐ N/A

If Yes, explain:

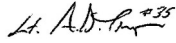
CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A

If Yes, explain:

Lt. A. S. Thompson #35

 #35

Reviewing Officer

2/21/2024

Date